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Dept. F47

Date: 8/20/26

Case #26CHCV00918

DEMURRER &
MOTION TO STRIKE TO THE FIRST AMENDED COMPLAINT

Demurrer & Motion to Strike filed on 6/22/26.

MOVING PARTY: Defendant Zoetis Inc.

RESPONDING PARTY: Plaintiffs Deborah Zumerling, et al.

NOTICE: ok

Demurrer: Defendant Zoetis Inc. demurs to all
causes of action as to all Plaintiffs other than Deborah Zumerling on the
ground that they are misjoined parties.
CCP 430.10(d).

Defendant demurs to all causes of action brought by
Plaintiffs Goodwin, Smith, Santos, Momberg, Dumlao, Bradford, Prieto and Prime
on the ground that the First Amended Complaint fails to allege sufficient facts
to state a cause of action because each of these Plaintiffs allege having using
Librela for the first time after the product label was changed and the First
Amended Complaint alleges that the new

label contained adequate warnings and
did not conceal information. CCP
430.10(e).

Defendant demurs to all causes of action as to Plaintiff
Kim Tanner on the ground that the First Amended Complaint fails to allege
sufficient facts to constitute a cause of action. CCP 430.10(e).

Defendant demurs to the 4th cause of action
for Fraudulent Misrepresentation, 5th cause of action for Fraudulent
Concealment and 6th cause of action for Negligent Misrepresentation on the grounds that the First Amended Complaint
fails to allege sufficient facts to state each of these causes of action. CCP 430.10(e).

RELIEF REQUESTED IN MOTION TO STRIKE: An order
strike Plaintiffs' allegations regarding/requests for emotional distress
damages (FAC ¶¶15, 105, 115, 131, 147 [p. 30], 133, 148, 163, 179, 195, 211,
227, 242, 258, 274, 290, 306, 322, 338, 353, 369, 384, 397, 408, 423, 436, 450,
464, 477, 490, 502, 515, 528, 541, 554, 567, 579, 594) and allegations regarding/requests
for punitive damages (FAC ¶657, Prayer for Relief).

RULING: The demurrer is moot, in part; sustained
without leave to amend, in part; and sustained with 30 days leave to amend, in
part. The motion to strike is granted
with 30 days leave to amend.

SUMMARY OF FACTS & PROCEDURAL HISTORY

This action arises out of the various Plaintiffs' claims
that their dogs experienced an adverse reaction to the prescription animal drug
Librela which is manufactured by Defendant Zoetis, Inc. (Defendant).

In the operative First Amended Complaint, the 37
Plaintiffs, Deborah Zumerling, Darin Mangan, Felicity Perkov, Melissa Thompson,
Steve Miller, Leslie Goodwin, Michelle Leder, Leslie Ramsay, Shaina Smith, Mary
Santos, Sara Tsutsumida, Amanda Morris, Veronica Luna, Linda Caesar, Sandi
Morgan, Bridget Morton, Chelsey Grimes, Kelly Waters, Douglas F. McRae, Nancy
Lewis, Charles Peterson, Mary Momberg, Gabrielle Salud, Daniel Hippert, Kim
Tanner, Tim Matson, Michael Lipner, Kristine Nielsen-Saravia, Jenna Dumlao,
Eric Rudy, Renee Mejia, Autumn Kelley Barr, David Bradford, Nicki Avellino,
Karen Patti, David Prieto, and Mary Prime, allege the following causes of

action against Defendant: (1) strict liability failure to warn, (2) negligent failure to warn, (3) negligence, (4) fraudulent misrepresentation, (5) fraudulent concealment, and (6) negligent misrepresentation.

After meet and confer efforts failed to resolve the issues Defendant has with the First Amended Complaint, on 6/22/26, Defendant filed and served the instant demurrer and motion to strike. (See Adams Decl.).

Defendant demurs to all causes of action as to all Plaintiffs other than Deborah Zumerling on the ground that they are misjoined parties. CCP 430.10(d).

Defendant demurs to all causes of action brought by Plaintiffs Goodwin, Smith, Santos, Momberg, Dumlao, Bradford, Prieto and Prime on the ground that the First Amended Complaint fails to allege sufficient facts to state a cause of action because each of these Plaintiffs allege having using Librela for the first time after the product label was changed and the First Amended Complaint alleges that the new label contained adequate warnings and did not conceal information. CCP 430.10(e).

Defendant demurs to all causes of action as to Plaintiff Kim Tanner on the ground that the First Amended Complaint fails to allege sufficient facts to constitute a cause of action. CCP 430.10(e).

Defendant demurs to the 4th cause of action for Fraudulent Misrepresentation, 5th cause of action for Fraudulent Concealment and 6th cause of action for Negligent Misrepresentation on the grounds that the First Amended Complaint fails to allege sufficient facts to state each of these causes of action. CCP 430.10(e).

Defendant also moves to strike Plaintiffs' allegations regarding/requests for emotional distress damages (FAC ¶¶15, 105, 115, 131, 147 [p. 30], 133, 148, 163, 179, 195, 211, 227, 242, 258, 274, 290, 306, 322, 338, 353, 369, 384, 397, 408, 423, 436, 450, 464, 477, 490, 502, 515, 528, 541, 554, 567, 579, 594) and allegations regarding/requests for punitive damages (FAC ¶657, Prayer for Relief).

On 8/6/26, pursuant to Plaintiffs' request, the complaint as to Plaintiffs Smith, Santos, Momberg, Dumlao, Prieto and Prime was dismissed

without prejudice. On 8/7/26, also pursuant to Plaintiffs' request, the complaint as to Plaintiffs Goodwin and Bradford was dismissed without prejudice.

On 8/7/26, Plaintiffs filed and served an opposition to the demurrer and motion to strike. On 8/13/26, Defendant filed and served a reply to the opposition.

ANALYSIS

PROCEDURAL ISSUES

(1) Opposition

papers are limited to 15 pages. See CRC 3.1113(d). Plaintiffs' opposition is 17 pages long. In the reply, Defendant notes that the Court has the discretion to not consider an oversized memorandum filed without prior court approval. See CRC 3.1113(e), (g); CRC 3.1300(d). The reply notes that defense counsel "worked diligently to ensure the Demurrer addressed all Plaintiffs and conformed to the rules, which required omitting argument, and it seems somewhat unfair the Opposition did not do the same." (See Reply, p.1, fn.1). However, Defendant combined its demurrer and motion to strike in one document when it could have filed a separate demurrer and a separate motion to strike (even though the hearings were on the same day) which would have allowed Defendant to utilize 15 pages for the demurrer and 15 pages for the motion to strike. Similarly, Plaintiffs could have filed separate oppositions to the demurrer and motion to strike. Therefore, the Court finds that Plaintiffs did not violate the page limitations set forth in CRC 3.1113(d).

(2) The dismissals

of Plaintiffs Smith, Santos, Momberg, Dumlao, Prieto, Prime, Goodwin and Bradford's claims, without prejudice, renders the demurrer and motion to strike moot as to these Plaintiffs. Defendant cites no authority for its argument that the dismissals do not moot its request to dismiss these Plaintiffs' claims with prejudice. (See Reply, p.2:21-22, p.7:11-16). In fact, as a matter of right, a plaintiff may dismiss an action until there has been a hearing on a demurrer filed by a defendant and the matter has been submitted to the trial court. See Datner (1983) 145 CA3d 768; CCP

581(b)(1).

(3) The opposition

concedes that Plaintiff Kim Tanner's name was inadvertently included in the

First Amended Complaint and that Tanner is not bringing claims in this action. (See Opposition, p.2, fn.1). Plaintiffs also acknowledges that the First

Amended Complaint includes numbering errors in the paragraphs which will be corrected as permitted by the Court. Id.

DEMURRER

Misjoinder of Parties

CCP 378(a)(1) provides that "[a]ll persons may join in one action as plaintiffs if [] "[t]hey assert any right to relief jointly, severally, or in the alternative, in respect of or arising out of the same transaction, occurrence, or series of transactions or occurrences and if any question of law or fact common to all these persons will arise in the action." (emphasis added). The first prong is satisfied if claims arise from "identical or related transactions" which requires " a single scheme, depending on the same basic representations and leading to a series of transactions exactly similar in kind and manner of operation." See Coleman (1959) 175 CA2d 650, 653; David (2015) 237 CA4th 734, 740-741.

Plaintiffs' claims are misjoined because they arise from distinct prescribing actions with different veterinarians who may have used different words. (See Opposition, p.5:8-10). As such, Plaintiffs' claims are not "the same" occurrences or "exactly similar in kind and manner." Plaintiffs' assertion that "any factual relationship" between claims satisfies the "same transaction" requirement set forth in CCP 378(a)(1) is without merit.

With regard to claims arising from separate exposures to prescription medical products, a finding of misjoinder of parties was upheld where plaintiffs were all exposed to the same product, manufactured by the same defendant, as the result of an alleged off-label promotion. See David, supra at 740-741.

In contrast, in Smith, relied on by Plaintiffs, all of the plaintiffs were employees of the same factory and, therefore, subject to the factory's same unlawful policy and practices. See Smith (2026) 121 CA5th 607,

619-620. Other cases where courts have found that the same transaction, occurrence, or series of transactions or occurrences prong was met involved a shared relationship which led to a common exposure giving rise to claims. See Colla (1930) 111 Cal.App.Supp. 784, 787 [passengers in the same vehicle exposed to negligent driving], Pilliod (2021) 67 CA5th 591, 628 [husband and-wife farmers who used the same herbicide exposed to chemical], Anaya (1984) 160 CA3d 228, 232–33 [employees at the same facility exposed to toxic pollutant], Smith, *supra*, at 620 [employees at the same factory were exposed to the unlawful policy], Aldrich (1955) 131 CA2d 788, 791–792 [buyers of homes in the same subdivision exposed to the seller's contract misrepresentations].

Here, no such shared relationship exists between the different Plaintiffs because Plaintiffs owned different dogs of different ages with different medical conditions; Plaintiffs took their dogs to different veterinarians for different reasons; these different veterinarians recommended Librela for different reasons and made different representations that induced Plaintiffs' consent; Plaintiffs' dogs underwent various Librela treatments at different times and Plaintiffs' dogs experienced different adverse consequences. As such, each Plaintiff's claims arise from distinct transactions. See David, *supra* at 740-741. To find otherwise would make the joinder of product-liability claims automatic rather than permissive meaning plaintiffs could join claims as long as they alleged using the same product with the same alleged defect which is not sufficient. *Id.* at 741.

Although not a “misjoinder case,” the reasoning in Himes (2024) 16 C5th 209 sheds light on why there is a misjoinder of parties in this case. Here, each Plaintiff's dog's exposure to the prescription medication arose from a distinct transaction, mediated by a learned-intermediary (the veterinarians), who exercised their own independent medical judgment with regard to the each Plaintiff's dog's particular circumstances. See Himes, *supra* at 222.

4th cause of action for Fraudulent Misrepresentation, 5th cause of action for Fraudulent Concealment and 6th cause of action for Negligent Misrepresentation

The elements of a fraud cause of action are: (1) a misrepresentation, including a concealment or nondisclosure; (2) knowledge of the falsity of the misrepresentation; (3) intent to induce reliance on the misrepresentation; (4) justifiable reliance; and (5) resulting damages. *Cadlo* (2004) 125 CA4th 513, 519 quoting *Small* (2003) 30 C4th 167, 173. A negligent misrepresentation cause of action has the same elements, except there is no intent requirement. *Id.* Each element of a fraud based cause of action must be specifically pled with facts showing how, when, where, to whom, and by what means the representations were made. *Amiodarone* (2022) 84 CA5th 1091, 1109; *SI 59 LLC* (2018) 29 CA5th 146, 154.

Plaintiffs have failed to plead the elements of fraud with the requisite factual specificity. Instead, they appear to be improperly attempting to morph a claim for inadequate product warning into a claim for fraud. See *Bigler-Engler* (2017) 7 CA5th 276, 313-314. The First Amended Complaint does not allege facts to show how, when, where, to whom and by what means Defendant defrauded each Plaintiff or their veterinarians. Nor have Plaintiffs pled sufficient facts regarding their veterinarians alleged justifiable reliance on the purported misrepresentations.

MOTION TO STRIKE

Even if a defendant commits intentional misconduct (e.g., fraud, conversion), a plaintiff cannot recover emotional distress damages where the intentional misconduct results in unintentional harm to animals. See *McMahon* (2009) 176 CA4th 1502, 1514-1515. Plaintiffs have not alleged facts which support a finding that Defendant intended to cause harm to Plaintiffs' dogs. Contrast *Plotnik* (2012) 208 CA4th 1590, 1607-1608 (defendant violently battered plaintiff's dog with a baseball bat to cause emotional distress to plaintiff).

Similarly, because Plaintiffs have failed to adequately allege their fraud claims, they have also failed to sufficiently allege a basis for punitive damages.

CONCLUSION

The demurrer is moot as to Plaintiffs Smith, Santos, Momberg, Dumlao, Prieto, Prime, Goodwin and Bradford due to the dismissal of their claims without prejudice.

The demurrer as to Plaintiff Kim Tanner's claims is sustained without leave to amend.

With the exception of Plaintiff Deborah Zumerling, the demurrer is sustained without leave to amend as to the remaining Plaintiffs on the ground of misjoinder of parties.

The demurrer as to Plaintiff Deborah Zumerling's 4th, 5th and 6th causes of action is sustained with 30 days leave to amend.

The motion to strike the allegations regarding/requests for emotional distress damages and punitive damages is granted with 30 days leave to amend.